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CASE #	CASE NAME	HEARING NAME
CVRI2406744	CRISTESCU vs WELLS FARGO BANK, N.A.	MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFFS' REQUESTS FOR ADMISSIONS, SET ONE AND REQUESTS FOR PRODUCTION OF DOCUMENTS SET ONE

Tentative Ruling:

This is a wrongful foreclosure case. On December 2024, Plaintiff Dorina Cristescu filed her complaint alleging claims for 1) violation of California Civil Code sections 2923.55, and 2924.17(a); 2) violation of California Civil Code section 2924f and seeking injunctive relief.

On March 6, 2026, Plaintiff served Requests for Admissions (Set One) and Requests for Production of Documents (Set One) upon Defendant by mail. On April 10, 2026, Defendant served responses. On April 17, 2026, Plaintiff sent a letter to Defendant identifying alleged deficiencies in the responses and demanding corrected responses by April 28, 2026. On April 22, 2026, Defendant acknowledged receipt and advised it would review the issues. On April 29, 2026, Defendant invited Plaintiff to meet and confer, requested availability during the week of May 11, 2026, and expressed willingness to discuss discovery and settlement.

On May 6, 2026, Plaintiff filed her first motion to compel. On June 8, 2026, this Court denied the first motion without prejudice due to procedural defects, specifically noting that the notice of motion lacked a hearing date, and the notice, motion, and supporting declaration were unsigned.

On June 11, 2026, Plaintiff filed the instant motion seeking to compel further responses to Requests for Admissions (Set One) ("RFAs") and Requests for Production of Documents (Set One) ("RFPs") served upon Defendant. Plaintiff also seeks an order deeming the matters in the RFAs admitted pursuant to Code of Civil Procedure § 2033.280, and monetary sanctions in the amount of \$1,560.00.

Defendant opposes the motion on procedural and substantive grounds.

Analysis

I. Legal Standard

A party may move for an order compelling further responses to requests for admissions where an answer is evasive or incomplete, or an objection is without merit or too general. (C.C.P., § 2033.290(a).)

Similarly, a party may move to compel further responses to requests for production where a statement of compliance is incomplete, a representation of inability

to comply is inadequate, incomplete, or evasive, or an objection is without merit or too general. (C.C.P., § 2031.310(a).) The party seeking discovery bears the burden of showing good cause by specific facts justifying the discovery sought. The burden rests upon the party seeking discovery to provide evidence from which the court may determine that the material sought “is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal. App. 4th 216, 224.)

II. Procedural Deficiencies

No Separate Statement: California Rule of Court 3.1345(a) requires that “[a]ny motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement.” This requirement expressly applies to motions to compel further responses to requests for admissions and requests for production.. (Cal. Rules of Court, rule 3.1345(a)(2), (3).)

Here, Plaintiff filed no separate statement. Her reply requests leave to file one or asks the Court to treat her papers as substantially compliant. Without a separate statement, the Court cannot determine which specific objections are challenged, on what grounds, and with what supporting authority, and Defendant lacks adequate notice of the disputes to be adjudicated. The motion is procedurally defective on this ground.

Inadequate Meet-and-Confer: A motion to compel further responses shall be accompanied by a meet and confer declaration. (C.C.P., §§ 2016.040, 2031.310(b)(2), 2033.290(b)(1).) C.C.P., § 2016.040(a) further requires the meet and confer be conducted either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. The level of effort required to satisfy the “reasonable and good faith attempt” standard depends upon the circumstances. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432.) In evaluating adequacy, courts consider “the history of the litigation, the nature of the interaction between counsel, the nature of the issues, the type and scope of discovery requested, the prospects for success and other similar factors.” (*Id.*)

Here, Plaintiff sent a detailed letter on April 17, 2026 identifying alleged deficiencies and demanding corrected responses by April 28, 2026. Defendant acknowledged receipt on April 22, 2026. On April 29, 2026, Defendant invited Plaintiff to meet and confer, requested availability during the week of May 11, 2026, and expressed willingness to discuss discovery and settlement. On May 6, 2026 without providing availability or engaging in any telephonic, video, or in-person conference, Plaintiff filed her first motion to compel. After the Court denied the first motion to compel, Plaintiff did not make further effort to meet and confer. Plaintiff’s effort falls short of a “reasonable and good faith attempt” under the statutes.

Timeliness: A motion to compel further responses to RFPs must be noticed “within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to compel “indicates an intention which the propounding party and the responding party have agreed in writing.” (C.C.P., § 2031.310(c).) The deadline is mandatory; unless the motion is timely noticed or the

parties agree in writing to a later date, “the [demanding] party waives any right to compel a further response.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409.) The court is “without authority to rule on motions to compel other than to deny them.” (*Id.* at p. 1410) C.C.P., § 2033.290 contains no analogous 45-day deadline for RFAs.

Here, Defendant served responses on April 10, 2026; with five days added for mail service (C.C.P., § 1013(a)), the deadline was May 25, 2026. Plaintiff’s first motion, filed May 6, 2026, was timely but was denied without prejudice on June 8, 2026 for procedural defects. Plaintiff filed the instant motion on June 11, 2026, a new motion outside the 45-day window. Denial without prejudice does not toll a mandatory statutory deadline, and no written agreement to extend exists in the record.

The motion is untimely as to the RFPs and must be denied on that ground. It remains timely as to the RFAs.

Wrong Statutory Remedy (Deem-Admitted RFAs): Plaintiff requests the Court deem the RFAs admitted under Code of Civil Procedure section 2033.280. However, section 2033.280 authorizes a deem-admitted order only where the responding party fails to serve a timely response; where responses have been served, the remedy lies under section 2033.290. (*St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762.) Defendant served responses on April 10, 2026, as Plaintiff’s own motion acknowledges. The section 2033.280 remedy is therefore unavailable.

III. Sanctions

Both parties seek sanctions against the other: Plaintiff requests \$1,560.00 and Defendant requests \$2,346.50. Code of Civil Procedure sections 2031.310(h) and 2033.290(d) provide that the court “shall” impose a monetary sanction against the losing party unless it finds that party acted “with substantial justification” or other circumstances make sanctions “unjust.”

The Court exercises its discretion to deny sanctions to both parties. While Plaintiff is the unsuccessful party, the Court finds that sanctions would be unjust given Plaintiff’s pro per status and her good-faith (though procedurally defective) effort to enforce her discovery rights. Similarly, while Defendant prevails, the Court declines to impose sanctions on a self-represented litigant navigating complex discovery procedures.